CONSTITUTION OF INDIA

OUTLINES

Module 4
Election provisions, Emergency provisions, Amendment of the constitution

Election Commission of India-composition, powers and functions and electoral process.

Types of emergency-grounds, procedure, duration and effects.

Amendment of the constitution - meaning, procedure and limitations.

Election Commission of India - Summary

The Election Commission of India (ECI) is a powerful constitutional body responsible for conducting free, fair, and transparent elections across the country.

Constitutional Foundation

- The ECI was established under Article 324 of the Indian Constitution, giving it broad authority over the conduct of elections to Parliament, State Legislatures, and the offices of President and Vice President.
- Further constitutional protections (Articles 324-329) ensure independence and impartiality in the Commission’s operations.

Election Commission of India - Composition and Appointment

Composition and Appointment

- The Commission comprises a Chief Election Commissioner (CEC) and other Election Commissioners. The President appoints these officials on the recommendation of a selection committee (CEC and Other ECs Act, 2023). Removal of the CEC is protected by constitutional safeguards, requiring procedures similar to a Supreme Court judge.
- Additional deputy commissioners and secretarial staff, usually drawn from the civil services, assist the Commission.

Election Commission of India - Key Powers and Functions

Key Powers and Functions

Administrative Powers

- Delimitation: Supervises the demarcation of electoral constituencies, although the process itself is usually conducted by a temporary Delimitation Commission.
- Electoral Rolls: Prepares, revises, and updates voters' lists continuously, ensuring only eligible citizens are registered.
- Election Schedules: Notifies dates, timelines, and procedures for elections across various levels.
- Supervisory Authority: Can request staff from central or state governments for conducting elections. It organizes, supervises, and monitors every step of the electoral process.

Election Commission of India - Regulatory and Disciplinary Authority

Regulatory and Disciplinary Authority

- Recognition of Parties: Registers political parties, confers their status (national/state), and allots election symbols. It has quasi-judicial authority to resolve symbol and party disputes.
- Model Code of Conduct (MCC): Issues and enforces rules to guide party and candidate conduct during elections, preventing unfair practices.
- Expenditure Monitoring: Sets campaign spending limits per candidate, audits and monitors expenses for transparency.
- Disciplinary Action: Can transfer or suspend officials for misconduct, cancel polls in cases of violence, rigging, or booth capturing.
- Voter Education: Runs SVEEP (Systematic Voters' Education and Electoral Participation) and other awareness programs to promote inclusive voter participation.

Election Commission of India – Advisory Jurisdiction

Advisory Jurisdiction

- Advises the President or Governors regarding disqualifications of legislators, situations under President's Rule, and other legal or constitutional matters impacting elections.
- **Importance and Challenges**
- Since the first general election (1951-52), the ECI has conducted national and state elections, constantly adapting to uphold constitutional values like fairness, transparency, autonomy, professionalism, and inclusivity.
- In recent years, it has disciplined political parties, enforced inner-party democracy, and responded to emerging challenges like technological change, migration, and voter disenfranchisement concerns.

Election Commission of India

The Election Commission of India (ECI) is a permanent, independent constitutional authority responsible for conducting free and fair elections to the Parliament, State Legislatures, and the offices of the President and Vice-President of India.

Composition of the ECI

- The ECI at present has the Chief Election Commissioner (CEC) and two Election Commissioners (ECs), all appointed by the President of India.
- Under the 2023 Act, the term is six years or up to age 65, whichever is earlier.
- All commissioners enjoy equal powers, salaries, and status, and decisions are made collectively by majority vote.
- The CEC can be removed only like a Supreme Court judge; other ECs only on the CEC's recommendation (Art. 324(5)), ensuring their independence.

Election Commission of India

Powers and Functions of the ECI

- **Administrative Powers**: The ECI controls election schedules, polling arrangements, preparation and revision of electoral rolls, and deployment of polling staff.
- **Advisory Powers**: The Commission advises the President and state Governors on disqualification of members of Parliament and state assemblies.
- **Quasi-Judicial Powers**: It decides disputes regarding recognition of political parties and the allocation of election symbols.
- **Regulatory Powers**: The ECI enforces the Model Code of Conduct (MCC), monitors election expenditure, and resolves election-related disputes.
- **Other Functions**: The Commission manages the location of polling stations, counting centres, registration of voters, and arrangements at polling/counting centres.

Election Commission of India

Electoral Process

- The ECI determines election schedules for periodic and timely general and bye-elections.
- It supervises the entire process of nominations, voting, counting, and announcement of results for Lok Sabha, Rajya Sabha, state legislatures, and Presidential/Vice-Presidential offices.
- It regulates political parties and monitors campaign finances.
- The Commission enforces rules to prevent unfair practices and oversees the Model Code of Conduct throughout the election period.

Election Commission of India

Role and Importance

- The ECI acts as the guardian of India's electoral democracy, ensuring transparency, autonomy, and accountability in the election process.
- Its legitimate independence from government interference builds public trust in India's democratic system.
- This framework ensures that electoral processes in India are fair, transparent, and impartial, upholding the integrity of democratic governance.

Election Commission of India

Article 324 of the Indian Constitution establishes and empowers the Election Commission of India (ECI) by granting it the authority of superintendence, direction, and control over the preparation of electoral rolls and the conduct of all elections to Parliament, State Legislatures, and the offices of President and Vice-President.

Constitutional Provisions under Article 324

- **Article 324(1)**: Vests the ECI with the powers of superintendence, direction, and control for the entire electoral process for Parliament, State Legislatures, President, and Vice-President.
- **Article 324(2)**: Defines the composition, allowing the President to appoint the Chief Election Commissioner (CEC) and such number of Election Commissioners as required.

Election Commission of India

- **Article 324(3)**: Specifies that the CEC acts as the Chairman when additional Election Commissioners are appointed.
- **Article 324(4)**: Permits the President, after consulting the Commission, to appoint regional commissioners to assist in general elections.
- **Article 324(5)**: Protects the tenure and service conditions of the CEC and Commissioners. The CEC can only be removed through a process similar to the removal of a Supreme Court judge; other Election Commissioners or Regional Commissioners can be removed only on the recommendation of the CEC.

Election Commission of India - Powers

Extent and Implications of Powers

- The ECI enjoys sweeping powers, even in cases where legislation is silent or insufficient, because Article 324 empowers it to act independently and take necessary measures to ensure free, fair, and honest elections.
- Parliament may regulate certain aspects by law, but the Commission’s core autonomy and independence are constitutionally guaranteed.
- Judicial interpretations by courts have consistently upheld the wide discretionary powers of the ECI granted by Article 324, reinforcing its position as a safeguard for Indian democracy.
- These constitutional provisions collectively ensure the ECI can function as an effective, independent authority to preserve the integrity and fairness of the electoral process in India.

Election Commission of India - Appointment

The appointment process of the Chief Election Commissioner (CEC) has faced major challenges and reforms, especially after the enactment of the Chief Election Commissioner and Other Election Commissioners (Appointment, Conditions of Service and Term of Office) Act, 2023.

Key Challenges to the Appointment Process

- The traditional process gave the executive (Prime Minister) significant say, with the President appointing the CEC based on the PM’s recommendation, raising concerns about the Commission's independence and vulnerability to government influence.

Election Commission of India - Appointment

- In 2023, following the Supreme Court's direction in the Anoop Baranwal Vs Union of India case, a selection committee comprising the Prime Minister, Leader of the Opposition (LoP), and the Chief Justice of India (CJI) was instituted to recommend appointments to enhance independence.
- The 2023 law subsequently replaced the CJI with a Cabinet Minister nominated by the PM, which critics say undermines independence by giving the ruling government effective control over the selection process.

Election Commission of India - Appointment

Reforms and Ongoing Legal Challenges

- The current selection panel includes the Prime Minister (Chair), a Union Cabinet Minister (nominated by the PM), and the Leader of the Opposition in Lok Sabha.
- Civil society, opposition leaders, and former CECs argue this reform increases executive dominance and reduces trust in electoral impartiality, as evidenced by widespread dissent and Supreme Court petitions seeking restoration of the CJI to the committee.
- Petitions challenging the new law and demanding the return of the CJI to the selection committee were heard by a two-judge Bench, which gave a split verdict on 23 Sept 2026. Papers go to the CJI for a Constitution Bench. The Act remains in force.

Election Commission of India - Appointment

Contemporary Controversies

- The February 2025 appointment of Gyanesh Kumar as CEC sparked significant political debate, with opposition leaders formally dissenting against the government's timing and process, and concerns being raised about the "midnight" selection just before a judicial hearing on the law.
- The issues reflect deeper anxieties about the ECI's credibility, impartiality, safeguards for democracy, and the balance of power in the appointment process.
- In summary, the CEC’s appointment process remains contentious, with the latest reforms under judicial scrutiny and ongoing political contestation about the independence of the Election Commission of India

Election Commission of India – Important Changes

Important Changes

- 1989 , 61st Amendment , 21 years to 18 years
- 1989-90: CEC + 2 ECs (briefly)
- 1990 - 93 – Single member body
- 1993 onwards multi member body
- 1992, 73rd Amendment , State Election Commission
- Delimitation commission

Election Commission of India – Recognition

Registered can only participate in election with fixed symbol

National Parties :

I. Recognised as a State party in 4 or more States, or

II. 6% valid votes in 4 or more States, along with

4 Lok Sabha seats, or

III. 2% of Lok Sabha seats (11) from at least 3 States

State Parties :

I. 6% valid votes and 2 seats in the Assembly election

II. 6% valid votes in the LS election and 1 LS seat

III. 3% of Assembly seats or 3 seats, whichever is more

IV. 1 LS seat for every 25 LS seats of the State

V. 8% of valid votes in the State

Election Commission of India – Delimitation commission

Article 82 , Article 170
Delimitation by act after every census by Parliament
Independent body – 1 SC Judge (Retired) + CEC +Respective State Commissioners
Final Decision – not questioned in Court
Boundaries decision of each Assembly / Loksabha
1952(1952) / (1962)1963 / 1971(1973) / 2002 (2002)
Seats frozen on 1971 census (42nd Amendment); freeze extended to the first census after 2026 (84th Amendment)
Why ? Representation / Participation / one vote one value
1982: EVMs first used at Paravur, Kerala

Emergency Provisions

- To enable the nation to meet any abnormal situations effectively
- Part XVIII, Article 352- 360
- Federal system works like a unitary one

Types

- National
- President’s Rule
- Financial Emergency

Emergency Provisions

National

President's Rule
Financial Emergency

Approval & Duration :

- Within 1 month in both the houses from date of issue
- If Lok Sabha is dissolved then within 30 days of reconstitution.
- 6 months
- Extension every 6 months
- Special majority

Grounds :

- Article 352 , Security of India or a part of it is threatened by war / external aggression (External Emergency) or armed rebellion (Internal Emergency) (44th Amendment – earlier called as internal disturbances)
- Before actuals happenings
- 1975 by 38th Amendment (Immune from Judicial Review)
- 44th Amendment – deleted the provision and made under Judicial Review

Revocation of Proclamation :

- Any time by President (No approval required by LS / RS)
- By simple majority in LS

Emergency Provisions

National

President's Rule

Financial Emergency

Effects :

- Drastic and Wide Range
- Center – State Relation : Executive Powers Extension
- Laws & Ordinance for the state
- President can modify State & Center Revenue
- Effects on life of Lok Sabha & State Assembly : may be extended by 1 year at a time.
- After finishing Emergency can not extend beyond 6 months
- Effects on Fundamental Rights :
- Art. 358: Art. 19 lapses automatically (war/external aggression)
- Art. 359: other FRs may be suspended, except Arts. 20, 21

Emergency Provisions

National

President's Rule

Financial Emergency

Grounds :

- State not working in accordance with constitution.
- Article 365 : State fails to comply or fails to comply with center or fails to give effect to the direction from center.

Presidents Rule :

- Article 355 : duty on center to ensure state to carry according to constitution
- Article 356 : Center takes over

Approval & Duration :

- Within 2 months
- 30 days in reconstitution
- 6 months
- Max 3 years (6-month extensions)
- Simple majority

Judicial review: S. R. Bommai v. Union of India (1994)

Emergency Provisions

National

President's Rule

Financial Emergency

Effects :

- Extension of executive authority of the Union over the financial matters.
- Reduction of salaries
- All money bills and financial bills for the consideration by the President, after passing by the State Legislature.

Financial Emergency:

- Situation due to which financial stability or credit of India or any part of its territory is threatened

Approval & Duration :

- Within 2 months by both the houses.
- 30 days in reconstitution
- Indefinitely till revoked

Scope of Judicial Review is there

Amendments

- Amendments to the Indian Constitution are formal changes or additions made to the Constitution to address new challenges, needs, or to clarify existing provisions.
- These amendments play a crucial role in adapting the Constitution to changing socio-political and economic conditions.
- The Indian Constitution has a well-defined process for amendments under Article 368.

Amendments

- Amendments can be introduced in either House of Parliament.
- They require a special majority (majority of total membership + two-thirds of members present and voting).
- Some amendments also require ratification by at least half of the State Legislatures.
- Types: Some parts of the Constitution can be amended by a special majority of Parliament alone, while others require ratification by states as well.

Amendments

Amendment	Year	Key Changes
1st	1951	Added 9th Schedule, imposed restrictions on freedom of speech, and validated land reforms.
7th	1956	Reorganization of states on a linguistic basis, creation of Union Territories.
24th	1971	Affirmed Parliament’s authority to amend any part of the Constitution.
26th	1971	Abolished privy purses to former rulers of princely states.
36th	1975	Made Sikkim a full state of India.
42nd	1976	Known as "Mini Constitution." Introduced 'Socialist', 'Secular', 'Integrity' to Preamble, added Fundamental Duties, curtailed judicial review, and strengthened the central government.
44th	1978	Limited powers of government to declare an emergency, safeguarded fundamental rights (Articles 20, 21).

Amendments

Amendment	Year	Key Changes
52nd	1985	Anti-defection law to prevent political defections.
61st	1989	Reduced voting age from 21 to 18 years.
73rd	1992	Established Panchayati Raj (local self-governance) with Part IX.
74th	1993	Empowered urban local bodies, added municipalities.
86th	2002	Made education a fundamental right for children aged 6 to 14 years.
101st	2016	Introduced Goods and Services Tax (GST).
103rd	2019	Provided 10% reservation for Economically Weaker Sections (EWS) in education and jobs.
106th	2023	Reserved one-third of seats for women in Lok Sabha and State Assemblies (to take effect after delimitation)

Amendments

Noteworthy Points

- The **42nd Amendment** (1976) is often called the "Mini Constitution" due to its vast and impactful changes.
- The **44th Amendment** (1978) was significant for restoring some checks on government powers after the Emergency era.
- The **amendment process in India balances flexibility and rigidity** to allow for changes without compromising the core structure of the Constitution.
- These amendments illustrate how the Constitution has evolved to respond to changing values and requirements in Indian society.

Procedure

The procedure for amending the Indian Constitution is detailed under Article 368. It is designed to maintain a balance between flexibility and rigidity, allowing changes while protecting the Constitution’s basic framework. Here is a clear explanation of the amendment procedure:

Procedure

Steps in the Amendment Procedure

1.Introduction of Amendment Bill

1. A Constitutional Amendment Bill can be introduced in either House of Parliament (Lok Sabha or Rajya Sabha).
2. It can be introduced by a minister or any private member.

2.Special Majority in Parliament

1. To pass the Amendment Bill, it must be approved by a special majority, meaning:
    1. A majority of the total membership of each House (more than 50% of all members), and
    2. At least two-thirds of the members present and voting should agree to the amendment.
2. This special majority ensures that amendments have wide support beyond a simple majority.

Procedure

3. Ratification by States (if required)

1. Certain amendments require ratification by at least half of the State Legislatures. These include changes affecting:
    1. The election of the President,
    2. The extent of the executive power of the Union and States,
    3. The powers of the Supreme Court and High Courts,
    4. The distribution of legislative powers between the Union and the States,
    5. Any of the Lists in the Seventh Schedule (Union List, State List, Concurrent List).
2. Ratification is done by the State Legislatures passing a resolution in favor of the amendment (simple majority is sufficient).

Procedure

4. President's Assent

1. After Parliament passes the Bill (and, if required, after ratification by States), it is sent to the President for assent.
2. The President must give assent for the Bill to become law.

Types of Amendments and Procedures

- **Special Majority:** For most constitutional amendments not affecting federal structure, only a special majority in Parliament is required.
- **Special Majority + State Ratification:** For amendments that affect federal features (laws related to President, Supreme Court, distribution of powers), ratification by at least half the states is mandatory.
- **Some parts of the Constitution, like the formation of new states, require the introduction of a Bill in Parliament, but this is not under Article 368.**

Limitations

Limitations on Amendment Power

- The Basic Structure Doctrine (Kesavananda Bharati v. State of Kerala, 1973) established by the Supreme Court states Parliament cannot alter the basic structure or framework of the Constitution, even by amending it.
- This means core principles like democracy, secularism, separation of powers, and federalism are inviolable.
- This procedure balances the need for change in the Constitution with protections to preserve its fundamental character, ensuring that amendments reflect broad consensus and safeguard the constitutional structure.